

BITSMUN 2025
Birla Institute of Technology and Science
Pilani
29th-30th, March, 2025



The United Nations General Assembly

BACKGROUND GUIDE

Agenda:

*"Reforming the UN Security Council: Addressing
Power Imbalances and Veto Reforms"*

Letter from the Executive Board

Dear Delegates,

We, the executive board members of the UNGA, find immense pleasure in being a part of the BITS Model UN-Pilani 2025. We extend a warm welcome to all of you.

We believe that 'study guides' are detrimental to the individual growth of the members since they overlook a very important aspect of this activity, which is - Research. We are sure that this background guide gives you a perfect launching pad to start your research. The Background guide would be as abstract as possible, and would just give you a fundamental perspective on what the executive board believes you should know before you commence your research. This being clear, kindly do not limit your research to the areas highlighted, further but ensure that you logically deduce and push your research to areas associated with the issues mentioned. The objective of this background guide is to provide you with a 'background' of the issue at hand and therefore it might seem to some as not being comprehensive enough. We are not looking for existing solutions, or strategies that would be a copy-paste of what countries you are representing have already stated; instead, we seek an out-of-the-box solution from you.

Wishing you all very good luck and hope to see you all at this conference discussing important issues of international interest. We look forward to meeting you all at Birla Institute of Technology and Science - Pilani Model United Nations 2025 and please do not hesitate to contact us, if you have any questions before attending the MUN.

Regards,

Ms. Anshika Singh : Chairperson

Mr. Vedatman Sonpal : Vice Chairperson

Ms. Aanya Singh : Co-Vice Chairperson

Looking forward to seeing you all.

Points To Remember

1. Procedure:

The purpose of putting procedural rules in any committee is to ensure a more organized and efficient debate. The committee will follow the UNA USA Rules of Procedure. Although the Executive Board shall be fairly strict with the Rules of Procedure, the discussion of the agenda will be the main priority. So, delegates are advised not to restrict their statements due to hesitation regarding the procedure.

2. Foreign Policy:

Following the foreign policy of one's country is the most important aspect of a Model UN Conference. This is what essentially differentiates a Model UN from other debating formats. To violate one's foreign policy without adequate reason is one of the worst mistakes a delegate can make.

3. Role of the Executive Board:

The Executive Board is appointed to facilitate debate. The committee shall decide the direction and flow of the debate. The delegates are the ones who constitute the committee and hence must be uninhibited while presenting their opinions/stances on any issue. However, the Executive Board may put forward questions and/or ask for clarifications at all points in time to debate further and test participants.

4. Nature of Source/Evidence:

This Background Guide is meant solely for research purposes and must not be cited as evidence to substantiate statements made during the conference. Evidence or proof for substantiating statements made during the formal debate is acceptable from the following sources:

United Nations:

Documents and findings by the United Nations or any related UN body are held as credible proof to support a claim or argument. Multilateral Organizations:

Documents from international organizations like OIC, NAFTA, SAARC, BRICS, EU, ASEAN, the International Criminal Court, etc. may also be presented as credible sources of information

Government Reports:

These reports can be used in a similar way as the State Operated News Agencies reports and can, in all circumstances, be denied by another country.

Please Note- Reports from NGOs working with UNESCO, UNICEF, and other UN bodies will be accepted. Under no circumstances will sources like Wikipedia, or newspapers like the Guardian, Times of India, etc. be accepted.

Valid Evidence In the Committee

Evidence or proof from the following sources will be accepted as credible by the UNHRC:

- **State-operated News Agencies:**

These reports can be used in support of or against the State that owns the News Agency. These reports, if credible or substantial enough, can be used to support or against any country as such but in that situation, they can be denied by any other country in the council. Some examples are,

- I.) RIA Novosti (Russia)
- II.) IRNA (Iran)
- III.) BBC & Reuters (United Kingdom)
- IV.) Al Jazeera (Qatar)
- V.) Xinhua News Agency (PR China)

- **Government Reports:**

These reports can be used in a similar way as the State Operated News Agencies reports and can, in all circumstances, be denied by another country. However, a nuance is that a report that is being denied by a certain country can still be accepted by the Executive Board as credible information. Some examples are,

- I. Government Websites like the State Department of the United States of America or the Ministry of Defense of the Russian Federation
- II. Ministry of Foreign Affairs of various nations like India or China
- III. Permanent Representatives to the United Nations Reports
- IV. Multilateral Organizations like the NATO

- **United Nations Reports:**

All UN Reports are considered credible information or evidence for the Executive Board of the UNHRC

- I) UN Bodies like the UNGA, etc.
- II) UN Affiliated Bodies like UNICEF, International Committee of the Red Cross, etc.
- III) Treaty Bodies like the United Nations Convention on the Rights of the Child etc.

ABOUT THE COMMITTEE

Introduction

The United Nations General Assembly is one of the six principal organs of the United Nations (UN) and the only body in which every member of the organization is represented and allowed to vote. The first session of the assembly convened on Jan. 10, 1946, in London, with 51 countries represented. As of 2006, there were 192 members of the General Assembly. Numerous non-members, such as states, organizations, and other entities (e.g., the Vatican, the African Union, the International Committee of the Red Cross, and Palestine), maintain observer status, enabling them to participate in the work of the General Assembly. The General Assembly exercises deliberative, supervisory, financial, and elective functions relating to any matter within the scope of the UN Charter. Its primary role, however, is to discuss issues and make recommendations, though it has no power to enforce its resolutions or compel state action. Other functions include admitting new members; selecting members of the Economic and Social Council, the non-permanent members of the Security Council, and the Trusteeship Council; supervising the activities of the other UN organs, from which the General Assembly receives reports; and participating in the election of judges to the International Court of Justice and the selection of the secretary-general. Decisions usually are reached by a simple majority vote. On important questions, however, such as the admission of new members, budgetary matters, and peace and security issues, a two-thirds majority is required. The General Assembly convenes annually and in special sessions, electing a new president each year from among five regional groups of states. At the beginning of each regular session, the General Assembly also holds a general debate, in which all members participate and may raise any issue of international concern. Most work, however, is delegated to six main committees, known as

- (1) Disarmament and International Security
- (2) Economic and Financial
- (3) Social, Humanitarian, and Cultural
- (4) Special Political and Decolonization
- (5) Administrative and Budgetary
- (6) Legal

The large size of the General Assembly and the diversity of the issues it discussed contributed to the emergence of regionally based voting blocs in the 1960s. During the Cold War, the Soviet Union and the countries of Eastern Europe formed one of the most cohesive blocs. Since the 1980s and the end of the Cold War, blocs have formed around “North-South” economic issues, i.e., issues of disagreement between the more-prosperous, industrialized countries of the Northern Hemisphere and the poorer, less-industrialized developing countries of the Southern Hemisphere. The number of resolutions passed by the General Assembly each year has climbed to more than 300, and many resolutions are adopted without opposition. Nevertheless, there have been sharp disagreements among members on several issues, such as those relating to the Cold War, the Arab-Israeli conflict, and human rights.

1. The Role and Functions of the UNGA

- a. Promoting International Cooperation and Peace
- b. Setting the Global Agenda
- c. Reviewing the Work of Specialized Agencies

The UNGA acts as a platform for member states to engage in diplomatic dialogue, fostering understanding, and cooperation. It provides a space for nations to voice their concerns, propose solutions, and resolve conflicts. It also plays a significant role in setting the global agenda by addressing pressing issues facing humanity, influencing the policy priorities of the UN, and shaping the direction of international cooperation. The UNGA oversees the work of specialized agencies within the UN system. It ensures that these agencies align their activities with the broader goals and principles of the organization.

The Assembly is empowered to make recommendations to States on international issues within its competence. It has also initiated actions, political, economic, humanitarian, social and legal, which have affected the lives of millions of people throughout the world.

The landmark Millennium Declaration, adopted in 2000, and the 2005 World Summit Outcome Document, reflect the commitment of Member States:

- to reach specific goals to attain peace, security, and disarmament along with development and poverty eradication;
- to safeguard human rights and promote the rule of law; to protect our common environment;
- to meet the special needs of Africa; and to strengthen the United Nations

In September 2015, the Assembly agreed on a set of 17 Sustainable Development Goals, contained in the outcome document of the United Nations summit for the adoption of the post-2015 development agenda (resolution 70/1).

According to the Charter of the United Nations, the General Assembly may:

- Consider and approve the United Nations budget and establish the financial assessments of Member States;

- Elect the non-permanent members of the Security Council and the members of other United Nations councils and organs and, on the recommendation of the Security Council, appoint the Secretary-General
- Consider and make recommendations on the general principles of cooperation for maintaining international peace and security, including disarmament;
- Discuss any question relating to international peace and security and, except where a dispute or situation is currently being discussed by the Security Council, make recommendations on it;
- Discuss, with the same exception, and make recommendations on any questions within the scope of the Charter or affecting the powers and functions of any organ of the United Nations;
- Initiate studies and make recommendations to promote international political cooperation, the development and codification of international law, the realization of human rights and fundamental freedoms, and international collaboration in the economic, social, humanitarian, cultural, educational, and health fields;

- Make recommendations for the peaceful settlement of any situation that might impair friendly relations among countries;
- Consider reports from the Security Council and other United Nations organs.

The Assembly may also take action in cases of a threat to the peace, breach of peace, or act of aggression, when the Security Council has failed to act owing to the negative vote of a permanent member. In such instances, according to its “Uniting for Peace” resolution of 3 November 1950, the Assembly may consider the matter immediately and recommend to its Members collective measures to maintain or restore international peace and security.

2. The Composition of the UNGA

The UNGA is composed of all *193 member states* of the United Nations, making it a truly global body. Each member state, regardless of its size or population, has an *equal vote*, ensuring the principle of sovereign equality. To facilitate discussions and decision-making, member states are organized into *five regional groups*: African Group, Asian Group, Eastern European Group, Latin American and Caribbean Group, and Western European and Others Group.

3. Resolutions and Voting

A resolution is a formal expression of the UNGA's opinion or recommendation on a particular matter. Resolutions are adopted through voting, with a two-thirds majority required for important decisions on issues such as peace and security, admission of new members, and budgetary matters.

4. Committee Deliberations and Consensus Building

Much of the UNGA's work is conducted through its committees and subsidiary bodies. These committees provide a platform for in-depth discussions and negotiations on specific issues. Consensus building is often emphasized to find a common ground.

About the Agenda

BACKGROUND REVIEW

The United Nations Security Council (UNSC), established in 1945, is one of the six principal organs of the United Nations, entrusted with maintaining international peace and security. Comprising five permanent members (P5) with veto power—China, France, Russia, the United Kingdom, and the United States—and ten non-permanent members elected for two-year terms, the UNSC has faced criticism for its structural and functional limitations. This includes its failure to reflect the geopolitical realities of the 21st century, the underrepresentation of regions such as Africa, Latin America, and the Global South, and the misuse of veto power by permanent members to further national interests.

The “**Reforming the UN Security Council: Addressing Power Imbalances and Veto Reforms**” agenda arises from decades of dissatisfaction with the current framework, which many argue perpetuates inequality and undermines the credibility of the Council. The debates on UNSC reform trace back to the 1960s, gaining momentum post-Cold War as globalization and multilateralism demanded a more inclusive and representative approach to global governance.

The United Nations General Assembly (UNGA) Intergovernmental Negotiations (IGN) on Security Council reform are a process where member states discuss and negotiate potential reforms to the UN Security Council (UNSC), focusing on issues like equitable representation and increasing membership.

At its sixty-second session, the General Assembly decided to commence intergovernmental negotiations in informal plenary of the Assembly during its sixty-third session, based on proposals by Member States, in good faith, with mutual respect and in an open, inclusive and transparent manner, on the question of equitable representation on and increase in the membership of the Security Council and other matters related to the Council, seeking a solution that could garner the widest possible political acceptance by Member States (decision 62/557). [Further information here.](#)

Introduction

The agenda focuses on two critical aspects of UNSC reform: **addressing power imbalances** and **veto reforms**. Power imbalances refer to the disproportionate influence wielded by the P5, which often sidelines the majority of member states, especially those from underrepresented regions. This imbalance impacts the legitimacy and effectiveness of the Council’s decisions, particularly in areas like peacekeeping operations, sanctions, and conflict resolutions.

The veto power, granted exclusively to the P5, allows any of them to unilaterally block substantive resolutions, regardless of the majority opinion. While originally designed to ensure consensus among major powers, the veto has been frequently criticized for enabling deadlocks on critical issues such as the Syrian Civil War, the Ukraine conflict, and the Israeli-Palestinian dispute. Reforming the veto system is seen as essential to enhancing the UNSC's democratic functioning and fostering collective global action.

Why It's Important to Discuss

- 1. Ensuring Representation:** The current structure fails to represent the aspirations and contributions of emerging powers like India, Brazil, and South Africa, or provide adequate voice to Africa and Latin America. Reforming the Council is vital to achieving equitable representation and addressing long-standing grievances.
- 2. Strengthening Legitimacy:** The perceived favoritism and double standards within the UNSC weaken the trust of member states. A reformed Council would bolster its legitimacy, ensuring that its decisions carry greater weight in the international community.
- 3. Curbing Abuse of Veto Power:** The misuse of veto power often results in paralysis, hindering timely action on pressing global crises. Discussions on veto reform aim to establish mechanisms to limit or rationalize its use, ensuring that it aligns with the principles of fairness and collective security.

Historical Context and Previous Reform Attempts

Timeline of Major UNSC Reform Attempts and Milestones (1945-Present)

1945: Establishment of the UN Security Council with five permanent members (P5) and six non-permanent members.

1963-1965: First major reform - General Assembly Resolution 1991A (XVIII) increased non-permanent membership from 6 to 10 members, expanding the total Council size from 11 to 15 members. The amendment entered into force in 1965.

1979: India, Brazil, and other Non-Aligned Movement countries propose expansion of both permanent and non-permanent categories.

1992: UNGA adopts resolution A/RES/47/62, placing "Question of equitable representation on an increase in the membership of the Security Council" as a formal agenda item.

1993: Establishment of the Open-Ended Working Group (OEWG) to consider all aspects of Security Council reform.

1997: Razali Plan proposed by UNGA President Razali Ismail recommends adding 5 permanent members (without veto) and 4 non-permanent members.

2000: The Millennium Declaration recognizes the need for comprehensive UNSC reform.

2004: High-Level Panel on Threats, Challenges and Change proposes two models for Council expansion:

- Model A: 6 new permanent seats without veto + 3 new non-permanent seats
- Model B: No new permanent seats but 8 renewable seats + 1 new non-permanent seat

2005: World Summit addresses reform (detailed below).

2005: G4 countries (Germany, Japan, India, Brazil) formalize their joint proposal.

2005: Uniting for Consensus (UFC) group forms in opposition to the G4 proposal.

2005: African Union adopts Ezulwini Consensus.

2007: Transitional approach proposed for incremental reform.

2008: Intergovernmental Negotiations (IGN) process established, replacing OEWG.

2010: Text-based negotiations begin in the IGN.

2015: Negotiations result in a framework document outlining positions.

2020: 75th anniversary of UN; renewed calls for UNSC reform in the context of multilateralism.

2022-2024: Russia-Ukraine conflict and Gaza war highlight UNSC paralysis, intensifying reform discussions.

2005 World Summit Outcomes Related to Security Council Reform

The 2005 World Summit represented a significant moment for UNSC reform discussions. The Outcome Document (A/RES/60/1) specifically addressed Security Council reform in paragraphs 152-154:

1. **Recognition of Reform Necessity:** Leaders endorsed "early reform" of the Security Council to make it "more broadly representative, efficient and transparent."
2. **Commitment to Inclusivity:** The document emphasized the need to increase the participation of developing countries, particularly those contributing most to the UN.
3. **Recommendation for Continued Work:** Rather than endorsing a specific model, the Summit recommended continued efforts toward reform through the General Assembly.
4. **Comprehensive Reform Approach:** The document linked Security Council reform to broader UN reforms, creating momentum but without concrete outcomes.
5. **Call for Review:** The Summit established that reforms should be reviewed periodically to ensure effectiveness.

Despite high expectations, the Summit failed to produce a breakthrough on specific reform models, illustrating the difficulty in achieving consensus on this complex issue.

The G4 Proposal and Other Significant Reform Models

G4 Proposal (Germany, Japan, India, Brazil)

The G4 proposal advocates for:

- Adding 6 permanent seats: 4 for G4 countries + 2 for African nations
- Adding 4-5 non-permanent seats
- New permanent members initially foregoing veto rights
- Review of veto arrangement after 15 years
- Total Council size of 25-26 members

The G4 justifies their candidacies based on:

- Economic and financial contributions to the UN
- Strong records of democratic governance
- Significant military capabilities and peacekeeping contributions
- Regional representation considerations

Uniting for Consensus (UFC) Model

Led by countries including Italy, Pakistan, South Korea, Canada, and Argentina, this group emerged primarily in opposition to the G4:

- No new permanent members
- 10 new non-permanent seats with 3-4 year terms and possibility of immediate re-election
- Regional distribution of new seats
- Total Council size of 25 members

The Italian Proposal (Variation of UFC)

- Creation of regional seats that rotate among countries within regions
- No country would permanently occupy a seat
- Emphasis on regional representation rather than individual country power

Model C (Hybrid Approach)

Proposed by academic and diplomatic circles:

- 8 seats with 4-year renewable terms
- No new permanent members or vetoes
- Distribution based on geographical balance

The Ezulwini Consensus (African Union Position)

The Ezulwini Consensus, adopted in March 2005 in Swaziland (now Eswatini), represents Africa's common position on UNSC reform:

Core Principles:

1. **Full Permanent Representation:** Africa demands no less than two permanent seats with full veto rights, rectifying the historical exclusion of the continent.
2. **Additional Non-Permanent Seats:** The consensus calls for two additional non-permanent seats for Africa (increasing African non-permanent representation from 3 to 5).
3. **Selection Authority:** The African Union reserves the right to select Africa's representatives to both permanent and non-permanent seats.
4. **Veto Power Stance:** While preferring the abolition of the veto, the Consensus insists that as long as it exists, all permanent members, including new African members, must possess it.
5. **Regional Rotation:** The Consensus proposes a rotation of seats among African nations selected by the AU.

Significance:

- The Ezulwini Consensus is significant as it represents 54 UN member states speaking with one voice.
- It directly challenges the G4 proposal, which offers Africa permanent seats without veto power.
- It addresses the historical injustice of Africa's absence from permanent membership despite representing a significant portion of UN membership.

Challenges:

- The insistence on veto power for new permanent members faces strong resistance from current P5 members.
- The AU has maintained this position with little flexibility, potentially limiting compromise options.
- The question of which African nations would represent the continent remains contentious within Africa itself.

The Ezulwini Consensus remains a cornerstone position in UNSC reform negotiations and highlights the importance of addressing historical inequities in global governance structures.

Deeper Analysis of Reform Models

Comparative Table of Major Reform Proposals

Aspect	G4 Proposal	Uniting for Consensus	African Union (Ezulwini Consensus)	High-Level Panel Model A	High-Level Panel Model B
New Permanent Seats	6 (Germany, Japan, India, Brazil + 2 African states)	0	2 (for African states)	6 (2 from Africa, 2 from Asia-Pacific, 1 from Europe, 1 from Americas)	0
New Non-Permanent Seats	4-5	10 (longer terms, renewable)	2 (increasing Africa's total to 5)	3	8 (renewable 4-year terms) + 1 non-renewable
Total Council Size	25-26	25	26	24	24
Veto Rights	Initially no veto for new permanent members; review after 15 years	No expansion of the veto	Equal veto rights for all permanent members	No new veto powers	No new veto powers
Regional Representation	Improved representation for Africa, Asia, and Latin America	Regional rotation system	Explicit African representation	Distributed by regional groups	Distributed by regional groups
Selection Process	UN vote for individual countries	Regional groups select representatives	African Union selects African representatives	UN vote for individual countries	UN vote for regions
Key Supporters	Germany, Japan, India, Brazil, and several smaller nations	Italy, Pakistan, Argentina, South Korea, Canada, Mexico, Turkey	54 African Union members	Various middle powers	Various middle powers
Primary Opposition	UFC group, some P5 members	G4 nations	Opposition to veto demand from P5	Some P5 members	Some P5 members

Analysis of Membership Expansion Scenarios

Scenario 1: G4 Expansion (25 Members)

Implications:

- **Regional Balance:** Improves representation of Asia (India, Japan), Europe (Germany), Latin America (Brazil), and Africa (2 seats), but may still leave the Middle East and small states underrepresented.
- **Decision-Making Efficiency:** Larger councils might reduce efficiency, but permanent status might create more stability.
- **Global Power Relations:** Acknowledges rising powers, potentially reducing their incentive to create alternative international structures.
- **Financial Burden Distribution:** This would include more top financial contributors as permanent members.
- **Implementation Challenges:** Strong opposition from regional rivals (e.g., Pakistan against India, Argentina against Brazil).

Scenario 2: UFC Model (25 Members)

Implications:

- **Regional Balance:** Emphasizes regional representation rather than individual country power.
- **Decision-Making Efficiency:** More rotation could decrease institutional memory but potentially increase dynamic problem-solving.
- **Global Power Relations:** Avoids creating new power centers, maintaining the current structure with broader participation.
- **Financial Burden Distribution:** Might not align Council membership with financial contributions to the UN.
- **Implementation Challenges:** More acceptable to regional powers as opposed to their neighbors gaining permanent status.

Scenario 3: African Union Demands Met (26+ Members)

Implications:

- **Regional Balance:** Addresses historical underrepresentation of Africa.
- **Decision-Making Efficiency:** Expansion of veto rights could create more deadlocks.
- **Global Power Relations:** Fundamentally reshapes power dynamics by expanding veto beyond original P5.
- **Financial Burden Distribution:** This may not align with financial contributions, emphasizing historical justice instead.
- **Implementation Challenges:** Resistance from current P5 to share veto power makes this the most difficult model to implement.

Scenario 4: Hybrid Model (24 Members)

Implications:

- **Regional Balance:** Potentially better balances geographical representation without permanent power centers.
- **Decision-Making Efficiency:** Longer terms with renewable positions could enhance continuity while maintaining flexibility.
- **Global Power Relations:** Creates a middle tier of influence between P5 and regular non-permanent members.
- **Financial Burden Distribution:** Could create a mechanism to link longer-term seats with contributions.
- **Implementation Challenges:** These may be viewed as insufficient by countries seeking permanent status.

Intermediate/Transitional Reform Options

1. Intermediate Model (French-Mexican Proposal)

- The initial phase with no charter amendments needed
- Voluntary restraint of veto use in cases of mass atrocities
- Gradual expansion of transparency requirements
- Non-permanent member term extensions without creating new permanent seats
- Potential to evolve into more comprehensive reform after proving effectiveness

2. Incremental Implementation Approach

- Step-by-step implementation of reforms with regular review periods
- Begin with less controversial elements (working methods improvement, transparency)
- Progress to term length modifications and Council expansion
- Defer most contentious issues (veto) to later phases
- Benefits include building momentum and trust through early successes

3. Regional Rotation System

- Semi-permanent regional seats rotating among predetermined groups of countries
- Offers middle ground between permanent membership and current non-permanent system
- Enhances predictability while maintaining broader participation
- Could serve as a transition phase while more comprehensive reforms are negotiated
- Example: Latin American seat rotating among Brazil, Mexico, Argentina, and Colombia on an 8-year cycle

4. Charter Amendment Bypass Options

- Focus on reforms possible without Charter amendment (requiring P5 ratification)

- Changes to Rules of Procedure and working methods
- Enhanced consultation mechanisms with non-council members
- Creation of formal advisory roles for regional organizations
- More transparent election processes for non-permanent members

Veto Power Mechanics

Statistics on Veto Usage by P5 Members (1946-2023)

Period	Soviet Union/ Russia	United States	United Kingdom	France	China	Total
1946-1955	80	0	0	0	1	81
1956-1965	26	0	3	2	0	31
1966-1975	7	12	8	2	2	31
1976-1985	6	34	11	9	0	60
1986-1995	2	24	8	3	0	37
1996-2005	1	9	0	0	2	12
2006-2015	8	3	0	0	6	17
2016-2023	16	3	0	0	10	29
2024-Mar 2025	6	1	0	0	3	10
Total	152	86	30	16	24	308

Key Observations:

- The Cold War period (1946-1985) saw the heaviest veto usage, accounting for 68% of all vetoes
- Soviet Union/Russia has used the veto most frequently, with 49% of all vetoes
- UK and France have not used their veto since 1989
- China's veto usage increased significantly after 2005
- The subject matter of vetoes has evolved: early vetoes often concerned membership, recent vetoes focus on conflict interventions and sanctions

Specific Veto Reform Proposals

1. Voluntary Restraint Initiatives (French/Mexican Proposal)

- P5 members voluntarily refrain from using the veto in cases of mass atrocities
- Implementation through political declaration rather than Charter amendment
- France and Mexico circulated a draft declaration in 2015
- The UK expressed support; Russia, China, and the US showed reservations
- Accountability would rely on "naming and shaming" rather than formal enforcement

2. Supermajority Override (S5 Proposal)

- Proposal by Small Five Group (Costa Rica, Jordan, Liechtenstein, Singapore, Switzerland)
- Allows General Assembly to override a veto with a supermajority vote (2/3 or 4/5)
- Similar to "Uniting for Peace" but with formal integration into UNSC procedures
- Would require a Charter amendment, making implementation challenging
- Presents legal questions about the relationship between GA and SC authorities

3. Veto with Explanation Requirement (Accountability Proposal)

- Any veto cast would require a formal public explanation of the reasoning
- Explanation would need to reference international law and UN Charter principles
- Would enhance transparency without directly limiting veto power
- Could be implemented through Rules of Procedure without Charter amendment
- Supported by the Accountability, Coherence, and Transparency (ACT) group of 27 states

4. Collective Veto Requirement

- Require multiple P5 members (2 or 3) to exercise veto together for it to take effect
- This would significantly reduce the unilateral blocking of resolutions
- Balances preservation of major power consent with reducing individual country power
- Proposed in academic circles and by certain civil society organizations

5. Qualified Veto Restriction (Issue-Based Approach)

- Restricting veto use in specific categories of resolutions:
 - Genocide and mass atrocity situations
 - Humanitarian access resolutions
 - UN peacekeeping mandate renewals
 - Referrals to the International Criminal Court
- Could be implemented alongside gentlemen's agreements or negative majority rules

The "Uniting for Peace" Resolution as a Veto Workaround

Background and Adoption

The "Uniting for Peace" resolution (UNGA Resolution 377A) was adopted in November 1950 during the Korean War. When the Soviet Union's veto prevented Security Council action, the resolution was introduced to give the General Assembly a mechanism to act when the Security Council is deadlocked by veto.

Key Provisions

- If the Security Council fails to act due to lack of unanimity among P5 members
- And there appears to be a threat to peace, breach of peace, or act of aggression
- The General Assembly can consider the matter immediately
- The GA can recommend collective measures, including the use of armed force when necessary

Legal Framework

- Based on Articles 10, 11, and 14 of the UN Charter
- Not a formal override of the veto, but a parallel decision-making track
- Security Council remains the primary body for peace and security
- GA recommendations are not legally binding, unlike Security Council resolutions

Historical Usage

The mechanism has been invoked in several significant cases:

- 1956: Suez Crisis (established UNEF I peacekeeping force)
- 1960: Congo Crisis (supported UN operation)
- 1980: Afghanistan (called for withdrawal of foreign troops)
- 1981: Palestine question
- 1997: Illegal Israeli actions in occupied East Jerusalem
- 2022: Emergency Special Session on Ukraine following the Russian invasion

Strengths and Limitations

Strengths:

- Provides a mechanism for international action despite the P5 deadlock
- Grants voice to broader UN membership
- Has successfully established peacekeeping operations

Limitations:

- Resolutions are recommendations without binding force
- Implementation depends on member-state cooperation

- No enforcement mechanisms without Security Council authority
- This can be seen as undermining Security Council primacy under the Charter

Relevance to UNSC Reform

The existence of the "Uniting for Peace" resolution demonstrates:

1. The long-standing recognition of the veto problem (dating to 1950)
2. The viability of procedural workarounds without Charter amendment
3. The creative use of existing UN structures to address power imbalances
4. The potential for GA to serve as a counterbalance to UNSC in specific circumstances

Reform proposals could seek to strengthen this mechanism, perhaps by formalizing the relationship between GA emergency sessions and subsequent Security Council action, or by establishing clear criteria for when the mechanism should be triggered.

Procedural Aspects of UNSC Reform

Charter Amendment Process (Articles 108 and 109)

Article 108 Procedure

Article 108 of the UN Charter outlines the standard amendment process:

1. Adoption by a two-thirds majority of the General Assembly
2. Ratification by two-thirds of UN member states, including ALL permanent members of the Security Council

This procedure gives each P5 member an effective veto over any amendment, creating a significant hurdle for reform. The requirement for unanimity among permanent members explains why substantive reform has been elusive despite decades of discussion.

Article 109 Procedure

Article 109 provides an alternative path through a General Conference:

1. The General Assembly can convene a General Conference to review the Charter by a two-thirds vote and any nine members of the Security Council
2. Any alterations proposed by the conference require a two-thirds majority of the conference
3. Changes take effect when ratified by two-thirds of UN member states, including ALL permanent members

While theoretically providing another avenue, Article 109 still maintains the P5 veto over final ratification. The provision for a General Conference (Article 109, paragraph 3) was activated in 1955 but has not led to significant reform.

Intergovernmental Negotiations (IGN) Framework

The IGN was established in 2008 through Decision 62/557 as the principal forum for discussing UNSC reform. It operates with several distinctive features:

Structure and Format

- Informal plenary sessions of the General Assembly
- No official records are kept, encouraging frank discussions
- Operates on the principle of consensus rather than voting
- Guided by a Chair or Co-Chairs appointed by the President of the General Assembly

Procedural Challenges

The IGN process has faced criticism for:

- Lack of text-based negotiations until recently
- Moving discussions in circular patterns without concrete outcomes
- No clear timeline for the completion
- Resistance from certain member states to transitioning to more formal negotiations

Despite these challenges, the IGN remains the only universally accepted forum for UNSC reform discussions.

Ratification Process Requirements

For any UNSC reform to be implemented, the following steps must occur:

Draft Resolution Development

1. Formulation of a specific reform proposal within the IGN
2. Building sufficient consensus to transition from informal discussions to formal draft resolution
3. Sponsorship by a significant number of member states across regional groups

General Assembly Adoption

1. Introduction of the resolution to the General Assembly
2. Debate and potential amendments
3. Adoption by at least two-thirds of the General Assembly (129 out of 193 member states)

National Ratification

1. Each member state must complete its domestic ratification process according to national constitutional requirements
2. For most countries, this involves parliamentary approval or referendums

3. Continuous diplomatic engagement is required to maintain momentum during this potentially lengthy phase

Special Requirements for P5

1. All five permanent members must ratify any amendment
2. Their domestic political processes are particularly crucial
3. Bilateral and multilateral negotiations may be necessary to address specific concerns

Implementation Phase

1. Once ratified, the UN Secretariat would oversee the transition process
2. The election of any new members would follow established procedures
3. Rules of procedure would need to be updated to reflect the new composition and working methods

The complexity of this multi-stage process explains why no substantive reform has succeeded despite widespread agreement that the current structure is outdated. Any successful reform would require unprecedented diplomatic coordination and political will across the global community.

Keywords and Their Detailed Analysis

Power Imbalances: The UNSC's current structure disproportionately favors the P5, a legacy of the post-World War II geopolitical landscape. This inequity marginalizes voices from underrepresented regions such as Africa, Latin America, and the Global South, failing to reflect contemporary global dynamics. Discussions must address how to rectify these imbalances, potentially through expanding both permanent and non-permanent membership to include emerging powers and regions historically excluded from decision-making.

Veto Power: The exclusive right of the P5 to veto substantive resolutions has often resulted in political deadlocks, preventing timely action on critical global issues. This power has been criticized for being misused to further national agendas, undermining the UNSC's credibility and effectiveness. Reform proposals include limiting the scope of veto usage, introducing mechanisms to override vetoes with a supermajority vote, or abolishing the veto entirely to ensure more democratic functioning.

Equitable Representation: The underrepresentation of certain regions and the absence of emerging powers in the UNSC's permanent membership undermine the Council's legitimacy. Equitable representation is vital for fostering trust and cooperation among member states. The agenda should emphasize the inclusion of states that have consistently contributed to global peacekeeping and international security, ensuring their perspectives are considered in decision-making.

Global Governance: The UNSC plays a central role in maintaining international peace and security, but its current structure raises questions about its ability to address 21st-century challenges. Effective global governance requires an inclusive and adaptable Security Council capable of addressing new threats such as climate change, cyber warfare, and transnational terrorism. Reforming the Council is integral to enhancing its capacity to tackle these issues collaboratively.

Multilateralism: The growing polarization in international relations has strained multilateral institutions like the UN. Reforming the UNSC is essential to reinforcing multilateralism by ensuring that decisions are made collectively rather than unilaterally. This keyword underlines the importance of fostering cooperation among member states to address global challenges and uphold the UN's credibility as a platform for international dialogue.

Contemporary Challenges to UNSC Reform

Geopolitical Tensions and Their Impact on Reform Prospects

The Ukraine Conflict

The Russian invasion of Ukraine in 2022 has exposed critical weaknesses in the UNSC's ability to address conflicts involving permanent members. Russia's veto power has prevented the Council from taking substantive action despite widespread international condemnation, forcing alternative mechanisms such as the "Uniting for Peace" resolution to move discussions to the General Assembly. This stark example of P5 paralysis has:

- Renewed calls for veto reform, particularly regarding conflicts where a permanent member is directly involved
- Prompted discussions about automatic General Assembly review of any veto used
- Highlighted how the post-WWII power structure fails to address contemporary conflicts
- Created new geopolitical divisions that may complicate consensus-building on reform

The Ukraine situation demonstrates how the current UNSC structure can become completely ineffective when permanent members' interests are directly involved, lending urgency to reform discussions while simultaneously making agreement more difficult.

Middle East Conflicts

The ongoing Israeli-Palestinian conflict and broader Middle East instability present similar challenges:

- U.S. vetoes on matters related to Israel have consistently prevented unified Council action
- The 2023-2024 Gaza conflict saw multiple vetoes blocking ceasefire resolutions
- Regional powers like Saudi Arabia, Iran, Turkey, and Egypt advocate for greater representation to address Middle Eastern security concerns

- The absence of permanent Arab representation on the Council despite the region's centrality to global security challenges remains a point of contention

These ongoing conflicts demonstrate how regional representation imbalances can undermine the UNSC's legitimacy in affected regions and hamper effective conflict resolution.

Rising US-China Tensions

The emerging strategic competition between the United States and China creates new obstacles for UNSC reform:

- Both powers increasingly view reform proposals through the lens of how changes might affect their relative influence
- China's growing economic and military power has made other P5 members more resistant to reforms that might further enhance Chinese influence
- Potential new permanent members must navigate complex relationships with both powers
- Technology competition, trade disputes, and regional flashpoints like Taiwan and the South China Sea complicate diplomatic coordination on reform

This strategic rivalry has created an environment where major powers are increasingly reluctant to support changes that might dilute their influence or strengthen geopolitical competitors.

Emerging Threats and Pressures for Reform

Climate Security

Climate change represents an existential threat that transcends traditional security paradigms:

- Small island nations and vulnerable countries argue that the Council's composition fails to represent those most affected by climate security issues
- The UNSC has begun recognizing climate change as a "threat multiplier" but lacks consensus on its role in addressing climate security
- Countries like Germany, Norway, and island nations have pushed for formalized UNSC engagement on climate security
- Russia and China have resisted attempts to expand the Council's mandate to include climate change

The growing recognition of climate change as a security threat challenges the traditional understanding of the UNSC's role and underscores the need for more diverse representation, including from climate-vulnerable regions.

Cybersecurity Threats

The emergence of cyberspace as a domain for conflict presents new challenges:

- Cyberattacks can cause significant damage without traditional military action, challenging the UNSC's definitions of aggression
- Attribution problems complicate the Council's ability to respond decisively
- The concentration of cyber capabilities among a few nations (including the P5) raises questions about impartiality
- Regional organizations and medium powers advocate for greater input on global cyber governance norms

These challenges highlight how the UNSC's structure and operations were designed for a pre-digital era, reinforcing arguments that its composition should evolve to address contemporary security threats.

Global Health Security and Pandemics

The COVID-19 pandemic revealed critical gaps in global governance:

- The UNSC was slow to recognize the pandemic as a security threat
- Political tensions between the U.S. and China hampered coordinated responses
- Nations with advanced health systems but no permanent representation (e.g., Germany, Japan) questioned the Council's composition
- The pandemic demonstrated how non-traditional security threats require diverse expertise and representation

This experience has strengthened arguments that the Council needs broader representation to effectively address complex, transnational threats to human security.

Transnational Terrorism

Evolving terrorist threats continue to challenge the Council's effectiveness:

- Terrorist organizations operate across borders in ways not anticipated by the UN Charter
- Affected regions (particularly in Africa, the Middle East, and South Asia) lack permanent representation despite bearing the greatest burden
- Counter-terrorism approaches often reflect P5 priorities rather than regional expertise
- The Council's sanctions mechanisms have shown limited effectiveness against non-state actors

These challenges underscore the disconnect between the geographic focus of contemporary security threats and the regions represented in the Council's permanent membership.

Case Studies

Yemen Conflict (2014-Present)

Background

Since 2014, Yemen has experienced a devastating civil war with international dimensions, involving Saudi-led coalition airstrikes, Houthi rebel advances, and a severe humanitarian crisis affecting millions of civilians.

UNSC Response

The Security Council's engagement with the Yemen crisis illustrates several key limitations:

- **Resolution 2216 (2015):** Imposed sanctions and an arms embargo on Houthi forces but not on the Saudi-led coalition despite evidence of civilian casualties
- **Selective Enforcement:** P5 divisions led to uneven implementation of sanctions and accountability measures
- **Humanitarian Access:** Despite unanimous support for humanitarian relief, the Council failed to ensure the effective implementation of access guarantees
- **Regional Influences:** Saudi Arabia, not a Council member, exercised significant influence through its allies among the P5
- **Commercial Interests:** Arms sales by P5 members to parties in the conflict created conflicts of interest in Council deliberations

Reform Implications

The Yemen case demonstrates several reform needs:

- The necessity for balanced regional representation to ensure all perspectives are considered
- Limitations of a Council where economic and strategic relationships with P5 members can override humanitarian concerns
- Need for mechanisms to ensure implementation of unanimous resolutions
- Importance of transparency in Council deliberations when P5 commercial interests are involved

Myanmar Crisis (2021-Present)

Background

The February 2021 military coup in Myanmar overthrew the democratically elected government and has led to ongoing violence, mass displacement, and civilian casualties, with regional instability implications.

UNSC Response

The Council's handling of Myanmar highlights structural constraints:

- **Initial Paralysis:** China and Russia blocked initial statements condemning the coup
- **Watered-Down Statements:** Eventual consensus came only through significantly weakened language

- **Regional Deference:** The Council largely deferred to ASEAN (Association of Southeast Asian Nations) despite limited progress
- **Resolution 2669 (2022):** The first resolution on Myanmar in decades demanded an end to violence but lacked enforcement mechanisms
- **Sanctions Discord:** Individual P5 members implemented unilateral sanctions while the Council failed to agree on collective measures

Reform Implications

The Myanmar situation underscores:

- How geographical proximity and regional influence affect Council dynamics
- The limitations of consensus-based decision-making when P5 interests diverge
- The need for stronger connections between the UNSC and regional organizations
- How the absence of Southeast Asian representation on the Council affects its approach to regional crises

Success Case: UN Transitional Administration in East Timor (UNTAET, 1999-2002)

Background

Following East Timor's vote for independence from Indonesia in 1999 and subsequent violence, the UNSC established UNTAET with unprecedented authority to administer the territory and shepherd its transition to independence.

UNSC Actions

- **Resolution 1272 (1999):** Created UNTAET with full legislative and executive authority
- **Comprehensive Mandate:** Combined peacekeeping, governance, humanitarian assistance, and state-building
- **Coordinated Approach:** Effectively integrated UN agencies, international financial institutions, and bilateral donors
- **Transition Planning:** Established clear benchmarks and timelines for transferring authority to local institutions
- **Regional Cooperation:** Successfully engaged Indonesia, Australia, and regional powers

Success Factors

Several elements contributed to this success:

- **P5 Alignment:** No permanent member had direct strategic interests at stake
- **Regional Support:** Key regional players (Indonesia, Australia) supported the mission
- **Clear Mandate:** The Council provided specific, achievable objectives
- **Adequate Resources:** Sufficient funding and personnel were allocated
- **Local Partnership:** Meaningful engagement with East Timorese leadership

Reform Implications

This suggests:

- The Council can function effectively when P5 interests align or are not directly involved
- Clear mandates with adequate resources produce better outcomes
- Regional organizations and neighboring states play crucial roles in implementation
- Success requires balancing international expertise with local ownership and capacity building

Success Case: Joint UN-OPCW Mission in Syria (2013-2014)

Background

Following chemical weapons attacks in Syria in 2013, the UNSC unanimously adopted Resolution 2118, establishing a joint mission with the Organization for the Prohibition of Chemical Weapons (OPCW) to eliminate Syria's chemical weapons program.

UNSC Actions

- **Resolution 2118 (2013):** Created unprecedented verification and destruction framework
- **Technical Cooperation:** Successfully combined UN logistics with OPCW technical expertise
- **Verification Regime:** Established comprehensive monitoring mechanisms
- **Maritime Operation:** Coordinated multi-nation effort to remove and destroy chemical agents
- **Rapid Timeline:** Achieved most objectives within nine months despite active conflict

Success Factors

- **Targeted Objective:** Focused on the specific, verifiable task rather than resolving the broader conflict
- **Technical Focus:** Emphasized technical rather than political considerations
- **International Norm:** Built on established chemical weapons prohibition norms
- **Russian-US Cooperation:** Rare alignment of interests between key P5 members
- **Specialized Expertise:** Leveraged OPCW's specific technical capabilities

Reform Implications

This case demonstrates:

- The Council's effectiveness when addressing specific, technical challenges
- Value of partnerships with specialized agencies and organizations
- Importance of identifying areas where P5 interests align despite broader disagreements
- How international norms can provide foundations for UNSC action even amid geopolitical tensions

The Syrian Civil War and UNSC Paralysis:

The Syrian Civil War, which erupted in 2011, has become one of the most devastating conflicts of the 21st century, marked by widespread human rights violations, mass displacement, and a severe humanitarian crisis. The UNSC's repeated failure to take decisive action in the conflict stems largely from the misuse of veto power by Russia and China, two of its permanent members. Over a dozen resolutions aimed at addressing the crisis—ranging from imposing sanctions on the Assad regime for chemical weapon usage to establishing humanitarian corridors—were vetoed. Russia, as a staunch ally of the Assad government, often cited its strategic and military interests in Syria, including the protection of its naval base in Tartus, as reasons for blocking resolutions. Similarly, China's vetoes reflected its broader foreign policy principle of non-intervention in domestic conflicts. This paralysis not only prolonged the conflict but also weakened the international community's ability to provide relief to millions of displaced civilians and to hold perpetrators accountable for war crimes. The Syrian Civil War exemplifies the urgent need for UNSC reform, particularly in curbing veto misuse and ensuring swift, collective action in situations of humanitarian urgency.

The Israeli-Palestinian Conflict and UNSC Bias:

The UNSC's handling of the Israeli-Palestinian conflict has long been criticized for its perceived bias, stemming from the strategic interests of its permanent members, particularly the United States. Since the mid-20th century, the US has consistently used its veto power to block resolutions condemning Israeli actions, including settlement expansions in the West Bank, military operations in Gaza, and violations of international humanitarian law. While the US justifies its actions by citing its alliance with Israel and the need for balanced resolutions, these vetoes have impeded progress toward a two-state solution and accountability for violations on both sides. The lack of a unified stance within the UNSC has diminished its credibility as an impartial arbiter in this protracted conflict. Additionally, the exclusion of regional stakeholders, such as Palestine and neighboring Arab nations, from substantive roles in decision-making underscores the need for structural reforms to ensure equitable representation. It highlights how UNSC imbalances, coupled with the misuse of veto power, undermine its role in fostering lasting peace and justice, necessitating urgent reforms to uphold impartiality and effectiveness.

Factors Affecting UNSC Effectiveness

A proper analysis of these cases would reveal patterns that inform reform discussions:

Enabling Factors

1. **Absence of Direct P5 Interests:** The Council functions most effectively when permanent members' core interests are not directly involved
2. **Regional Support:** Engagement from neighboring countries and regional organizations enhances implementation
3. **Clear, Achievable Mandates:** Specific objectives with appropriate resources increase success likelihood
4. **Technical vs. Political Focus:** Technical missions often face fewer political obstacles
5. **Normative Consensus:** Strong international norms provide foundations for action despite political differences

Limiting Factors

1. **P5 Strategic Interests:** Direct involvement of permanent members often leads to paralysis or biased responses
2. **Commercial Relationships:** Economic ties between P5 and conflict parties can create conflicts of interest
3. **Regional Representation Gaps:** Affected regions without permanent representation receive less attention
4. **Implementation Mechanisms:** Even unanimous resolutions often lack effective enforcement provisions
5. **Accountability Imbalances:** P5 members and their allies face less scrutiny than other states

International Legal Frameworks

1. United Nations Charter (1945)

Primary Provisions on the Security Council

- **Chapter V, Articles 23-32:** Establishes the composition, functions, powers, voting procedures, and operational mechanisms of the Security Council.
- **Article 23(1):** Designates the five permanent members (China, France, Russia, United Kingdom, United States) and the election of ten non-permanent members.
- **Article 27(3):** Establishes the veto power, requiring the concurring votes of all permanent members for decisions on substantive matters.

Amendment Procedures

- **Article 108:** "Amendments to the present Charter shall come into force for all Members of the United Nations when they have been adopted by a vote of two-thirds of the members of the General Assembly and ratified in accordance with their respective constitutional processes by two-thirds of the Members of the United Nations, including all the permanent members of the Security Council."
- **Article 109:** Provides for a General Conference to review the Charter, requiring a two-thirds vote of the General Assembly and any nine members of the Security Council.

2. General Assembly Resolution 48/26 (1993)

- Established the Open-ended Working Group on the Question of Equitable Representation on and Increase in the Membership of the Security Council and Other Matters Related to the Security Council.
- Mandated to consider all aspects of Security Council reform, including membership expansion, working methods, and decision-making processes.
- Remains the primary forum for intergovernmental negotiations on Security Council reform.

3. General Assembly Resolution 53/30 (1998)

- **Operative Paragraph 1:** Determines that any resolution on Security Council expansion and reform must receive a two-thirds majority of the General Assembly, as per Article 108 of the Charter.
- **Operative Paragraph 2:** Decides not to adopt any resolution or decision on Security Council reform without the requisite majority.
- Establishes a procedural safeguard against hasty reforms, emphasizing the need for broad consensus.

4. 2005 World Summit Outcome Document (A/RES/60/1)

- **Paragraphs 152-154:** Endorses "early reform" of the Security Council to make it "more broadly representative, efficient and transparent."
- **Paragraph 153:** Recommends that the Security Council adapt its working methods to increase the involvement of non-member states in its work, enhance accountability, and improve transparency.
- **Paragraph 154:** Supports continuing efforts by the General Assembly to reform the Security Council, recommending a review of progress by the end of 2005.

5. Decision 62/557 (2008) - Framework for Intergovernmental Negotiations

- Provides the negotiation framework that continues to guide current reform discussions.

6. Ezulwini Consensus (2005)

- Adopted by the African Union as the common African position on UN reform.
- Demands at least two permanent seats with veto power for Africa and five non-permanent seats.
- **Section B, Paragraph 1:** "Full representation of Africa in the Security Council means: (i) not less than two permanent seats with all the prerogatives and privileges of permanent membership including the right of veto; (ii) five non-permanent seats."
- **Section B, Paragraph 2:** "Africa's position on the veto is that so long as it exists, and as a matter of common justice, it should be made available to all permanent members of the Security Council."

7. G-4 Draft Framework Resolution (A/59/L.64) (2005)

- A joint proposal by Brazil, Germany, India, and Japan advocating for:
 - Six new permanent seats (two for Africa, two for Asia, one for Latin America and the Caribbean, one for Western Europe and Others)
 - Four new non-permanent seats
- **Paragraph 3:** New permanent members would not exercise veto power until a review after 15 years.
- Remains a significant reform model backed by major emerging powers.

8. Uniting for Consensus Draft Resolution (A/59/L.68) (2005)

- Alternative framework proposed by a group including Italy, Pakistan, South Korea, and others.
- **Operative Paragraph 2:** Proposes expanding the Council to 25 members with no new permanent seats.
- **Operative Paragraph 3:** Suggests creating a new category of longer-term elected seats with the possibility of immediate re-election.
- Emphasizes equitable geographic distribution and rotation of seats.

9. Security Council Resolution 1894 (2009) on Protection of Civilians

- **Paragraph 3:** Emphasizes the accountability of states to protect their populations.
- **Paragraph 4:** Reaffirms provisions of Responsibility to Protect (R2P).
- Highlights how veto power has impeded intervention in humanitarian crises, underscoring the need for reform.

10. General Assembly Resolution 76/253 (2022)

- **Operative Paragraph 1:** Mandates the use of the "veto initiative" requiring the General Assembly to meet within 10 days after a veto is cast in the Security Council.
- **Operative Paragraph 2:** Requires the vetoing permanent member to explain their position to the General Assembly.
- Represents a procedural reform to increase accountability for veto use without Charter amendment.

11. The Vienna Convention on the Law of Treaties (1969)

- **Article 9:** Provides guidelines for adopting treaties at international conferences, which can be analogously applied to UN Charter amendments.
- **Article 40:** Outlines procedures for amending multilateral treaties, which provides context for understanding the complexity of amending the UN Charter.
- **Article 53:** Defines jus cogens norms, which could be relevant when considering whether certain veto uses might violate peremptory norms of international law.

12. Responsibility to Protect (R2P) Doctrine (2005 World Summit Outcome Document)

- **Paragraphs 138-139:** Establishes three pillars of R2P:
 1. The state's responsibility to protect its populations
 2. The international community's responsibility to assist states
 3. Timely and decisive response by the international community when a state fails to protect its population
- Has been frequently cited in reform discussions as justification for limiting veto power in cases of mass atrocities.

13. Framework of Analysis for Atrocity Crimes (UN Office on Genocide Prevention, 2014)

- Provides risk assessment methodology for genocide, crimes against humanity, and war crimes.
- Relevant to proposals for veto restraint in situations involving atrocity crimes.
- Offers 14 risk factors that could trigger limitations on veto use in reform proposals.

14. ICC Rome Statute (1998)

- **Article 13(b):** Allows the Security Council to refer situations to the International Criminal Court.
- **Article 16:** Permits the Security Council to defer ICC investigations or prosecutions.
- Highlights the significant interaction between the Security Council and international criminal justice, which is affected by veto power and Council composition.

15. International Court of Justice (ICJ) Advisory Opinion on Kosovo (2010)

- Paragraph 94: Acknowledges the Security Council's primary responsibility for maintaining international peace and security.
- Provides legal context for understanding the scope and limitations of Security Council authority, relevant to reform discussions.

16. Intergovernmental Negotiations on Security Council Reform (IGN) Text (Latest version)

- Compiled by the President of the General Assembly, this evolving document reflects the current positions of member states on:
 - Categories of Membership
 - Regional representation
 - Working methods
 - Veto regulation
- Serves as the contemporary negotiating text for ongoing reform efforts.

17. ACT (Accountability, Coherence and Transparency) Code of Conduct (2015)

- Voluntary commitment by over 120 UN Member States to not vote against credible Security Council resolutions aimed at preventing or ending mass atrocities.
- **Paragraph 2:** Signatories pledge to "not vote against a credible draft resolution before the Security Council on timely and decisive action to end the commission of genocide, crimes against humanity or war crimes, or to prevent such crimes."
- Represents a practical approach to veto reform outside formal Charter amendment.

Resources:

(NOTE:

The Scholarly Articles, Books, and Monographs can be used for reference and understanding concepts and in no way shall not be used to quote factual data.)

Bibliography of Authoritative Sources

Official UN Documents

1. United Nations. (1945). *Charter of the United Nations and Statute of the International Court of Justice*. San Francisco.
2. United Nations General Assembly. (2005). *World Summit Outcome Document* (A/RES/60/1).
3. United Nations General Assembly. (2008). *Decision 62/557: Question of equitable representation on and increase in the membership of the Security Council and related matters*.
4. United Nations General Assembly. (1998). *Resolution 53/30: Question of equitable representation on and increase in the membership of the Security Council and related matters*.
5. United Nations. (2004). *A More Secure World: Our Shared Responsibility. Report of the High-Level Panel on Threats, Challenges and Change* (A/59/565).
6. United Nations. (2005). *In Larger Freedom: Towards Development, Security and Human Rights for All. Report of the Secretary-General* (A/59/2005).
7. United Nations Security Council. (2019). *Note by the President of the Security Council on Working Methods* (S/2019/990).
8. United Nations General Assembly. (2015). *Framework Document on Security Council Reform*. Chair of the Intergovernmental Negotiations.

Books and Monographs

9. Bourantonis, D. (2005). *The History and Politics of UN Security Council Reform*. Routledge.
10. Hassler, S. (2012). *Reforming the UN Security Council Membership: The Illusion of Representativeness*. Routledge.
11. Hurd, I. (2021). *After Anarchy: Legitimacy and Power in the United Nations Security Council*. Princeton University Press.
12. Langmore, J., & Farrall, J. (2016). *Can the UN Security Council Be Reformed?* Australian Institute of International Affairs.
13. von Einsiedel, S., Malone, D. M., & Stagno Ugarte, B. (Eds.). (2016). *The UN Security Council in the 21st Century*. Lynne Rienner Publishers.

Scholarly Articles

14. Bosco, D. (2014). "Assessing the UN Security Council: A Concert Perspective." *Global Governance*, 20(4), 545-561.

15. Caron, D. D. (1993). "The Legitimacy of the Collective Authority of the Security Council." *American Journal of International Law*, 87(4), 552-588.
16. Gould, M., & Rablen, M. D. (2017). "Reform of the United Nations Security Council: Equity and Efficiency." *Public Choice*, 173(1-2), 145-168.
17. Schaefer, K. (2017). "Reforming the United Nations Security Council: Feasibility or Utopia?" *International Negotiation*, 22(1), 62-91.
18. Schrijver, N. (2007). "Reforming the UN Security Council in Pursuance of Collective Security." *Journal of Conflict and Security Law*, 12(1), 127-138.
19. Weiss, T. G. (2003). "The Illusion of UN Security Council Reform." *The Washington Quarterly*, 26(4), 147-161.

Policy Papers and Think Tank Reports

20. International Peace Institute. (2021). *Security Council Reform: Mapping Proposals and Positions*. IPI Policy Papers.
21. Security Council Report. (2022). *Security Council Working Methods: A Work in Progress?*
22. Center for UN Reform Education. (2020). *Governing and Managing Change at the United Nations: Security Council Reform from 1945 to 2020*.
23. Global Policy Forum. (2019). *Table and Chart of Security Council Membership by Region*.
24. International Crisis Group. (2020). *A New Era for the UN Security Council? Council Reform and the Post-COVID World*. ICG Special Briefing.
25. Stockholm International Peace Research Institute. (2021). *Power Dynamics and Security Council Reform*. SIPRI Policy Brief.

Glossary of Key Terms and Concepts

Article 27 - Provision in the UN Charter that establishes voting procedures in the Security Council, including the veto power for permanent members.

Cascade Effect - In UN reform discussions, refers to how changes in Security Council composition might trigger demands for reform in other UN bodies.

Categories of Membership - The different types of Security Council seats: are permanent, non-permanent, and proposed new categories like "semi-permanent" or "longer-term" seats.

Clusters - The five negotiation areas within the Intergovernmental Negotiations framework: categories of membership, veto power, regional representation, size and working methods, and Security Council-General Assembly relations.

Coffee Club - Original name for the "Uniting for Consensus" group that opposes the G4 nations' bid for permanent seats.

Congruence - The principle that the composition of the Security Council should reflect the broader UN membership.

Ezulwini Consensus - The African Union's common position on Security Council reform, adopted in 2005, demands two permanent seats with veto power and five non-permanent seats for Africa.

G4 - Group of Four nations (Brazil, Germany, India, and Japan) that mutually support each other's bids for permanent membership.

Intergovernmental Negotiations (IGN) - The informal General Assembly platform established in 2008 for discussing Security Council reform.

L.69 Group - A cross-regional group of developing countries advocating for Security Council reform.

P5 - The five permanent members of the Security Council: China, France, Russia, the United Kingdom, and the United States.

Paper Resolutions - Draft proposals for Security Council reform that have been circulated but not formally submitted for voting.

Penholder System - Practice where specific Security Council members take the lead in drafting resolutions on particular situations or themes.

Procedural Vote - The Security Council votes on procedural matters that cannot be vetoed by permanent members.

Ratification - The process by which member states formally approve amendments to the UN Charter through their domestic constitutional procedures.

Regional Groups - The five geographical groupings in the UN: are the African Group, Asia-Pacific Group, Eastern European Group, Latin American and Caribbean Group, and Western European and Others Group.

Responsibility to Protect (R2P) - The principle that states have a responsibility to protect their populations from genocide, war crimes, ethnic cleansing, and crimes against humanity, with the international community having a responsibility to assist.

Rolling Text - A negotiating document that evolves through multiple revisions to incorporate various positions and proposals.

Substantive Vote - Security Council vote on non-procedural matters where permanent members can exercise veto power.

Text-Based Negotiations - Formal negotiations focused on specific written proposals rather than general discussions.

Uniting for Consensus (UfC) - Group of nations opposed to G4 permanent membership bids, advocating instead for expanding only non-permanent seats.

Veto Power - The ability of permanent Security Council members to block substantive resolutions regardless of majority support.

Working Methods - The procedures and practices that govern how the Security Council conducts its business.

Questions To Consider

- How does the current composition of the UNSC fail to reflect modern geopolitical realities?
- What criteria should be considered for expanding permanent or non-permanent membership?
- How can regions like Africa, Latin America, and the Global South achieve fair representation?
- What are the main criticisms of the veto power exercised by the P5?
- Should the veto power be limited, abolished, or regulated? What mechanisms can ensure this?
- How can the Council avoid deadlocks while maintaining the principle of consensus?
- How can reforms address the exclusion of emerging powers and underrepresented regions?
- What measures can ensure that decisions taken by the UNSC are transparent and inclusive?
- How can non-member states and regional organizations play a greater role in the Council's decision-making process?

Links to Official UN Documents

1. [UN Charter \(Chapter V: The Security Council\)](#)
2. [General Assembly Decision 62/557 on Security Council Reform](#)
3. [Report of the High-Level Panel on Threats, Challenges and Change \(2004\)](#)
4. [IGN Framework Document on Security Council Reform \(2015\)](#)
5. [Note by the President of the Security Council on Working Methods \(S/2019/990\)](#)
6. [UNGA Resolution 73/341 on Revitalization of the General Assembly](#)
7. [General Assembly Annual Reports on Security Council Reform](#)
8. [UN Security Council Annual Reports to the General Assembly](#)

Scholarly Articles and Research Papers

1. [Reforming the United Nations Security Council: Proposals, Strategies and Preferences](#)
2. [The Power of Process: The Value of Due Process in Security Council Sanctions Decision-making](#)
3. [Regional Contestations Over Security Council Reform](#)
4. [Security Council Reform: A New Veto for a New Century?](#)
5. [United Nations Security Council Reform and the Protection of Civilians Debate](#)

Statistical Data on the Security Council

Council Composition by Region (1945-Present)

Regional Group	Permanent Seats	% of Permanent Seats	Current Non-Permanent Seats	% of Current Council	% of UN Membership
Africa	0	0%	3	20%	28%
Asia-Pacific	1	20%	2	20%	27%
Eastern Europe	1	20%	1	13%	12%
GRULAC*	0	0%	2	13%	17%
WEOG**	3	60%	2	33%	16%

*GRULAC: Group of Latin American and Caribbean Countries

**WEOG: Western European and Others Group

Vetoes Cast (1946-2023)

Permanent Member	Number of Vetoes	% of Total Vetoes	Main Topics Vetoes
Russia/USSR	121	47%	Middle East, Ukraine, Syria
United States	82	32%	Israel/Palestine, Middle East
United Kingdom	29	11%	Rhodesia, South Africa, Middle East
France	16	6%	Suez Crisis, Colonial Issues
China	10	4%	Myanmar, Zimbabwe, Central America

Resolutions Passed by Decade

Decade	Resolutions Passed	Average Per Year	Security Council Sessions
1946-1955	83	8.3	512
1956-1965	111	11.1	834
1966-1975	178	17.8	700
1976-1985	216	21.6	635
1986-1995	638	63.8	1,070
1996-2005	798	79.8	1,164
2006-2015	648	64.8	741
2016-2023	529	66.1	583

Reform Proposals by Category

Proposal Type	Number of Member States Supporting	% of UN Membership
Expand Permanent Membership with a Veto	54	28%
Expand Permanent Membership without Veto	70	36%
Create New Longer-Term Seats	114	59%
Only Expand Non-Permanent Seats	48	25%
Abolish or Restrict Veto	122	63%
Improve Working Methods Only	191	99%

Note: Many member states support multiple proposals, so percentages do not add up to 100%

Usage of Veto by Era

Era	Total Vetoes	Average Per Year
Cold War (1946-1991)	199	4.3
Post-Cold War (1992-2000)	9	1.0
Early 21st Century (2001-2010)	14	1.4
Recent Period (2011-2023)	36	2.8

Charter Amendment Process Success Rate

Reform Attempt	Year	No. of Amendments	Result
Security Council Expansion	1963-1965	2	Successful (expanded from 11 to 15 members)
ECOSOC Expansion	1971	1	Successful (expanded from 27 to 54 members)
ECOSOC Expansion	1973	1	Successful (procedural changes)
Security Council Reform Proposals	1993-Present	0	No formal vote taken